

HOUSE No. 4199

The Commonwealth of Massachusetts

PRESENTED BY:

Jeffrey N. Roy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting victims of childhood sexual abuse and holding perpetrators accountable.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jeffrey N. Roy</i>	<i>10th Norfolk</i>	<i>5/20/2025</i>

HOUSE No. 4199

By Representative Roy of Franklin, a petition (subject to Joint Rule 12) of Jeffrey N. Roy relative to legal protections for victims of childhood sexual abuse. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting victims of childhood sexual abuse and holding perpetrators accountable.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4C of chapter 260 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the first paragraph and inserting in place
3 thereof the following paragraph:

4 Notwithstanding any general or special law to the contrary, a civil action alleging a
5 defendant sexually abused a minor may be commenced at any time after the acts alleged to have
6 caused an injury or condition occurred.

7 SECTION 2. Said chapter 260 is hereby amended by striking out section 4C½ and
8 inserting in place thereof the following section:

9 Section 4C½. Notwithstanding any general or special law to the contrary, and
10 notwithstanding the requirements of the Massachusetts Tort Claims Act, Mass. Gen. Law. C. 258
11 §4, any civil action alleging that a defendant negligently supervised a person who sexually
12 abused a minor or that a defendant's acts or omissions caused or contributed to the sexual abuse

of a minor by another person may be commenced at any time after the acts or omissions alleged to have caused an injury or condition occurred. For the purposes of this section, “sexual abuse” shall have the same meaning as in section 4C.

SECTION 3. Revival of Time Barred Claims

Notwithstanding any general or special law to the contrary, and notwithstanding the requirements of the Massachusetts Tort Claims Act, Mass. Gen. Law. C. 258 §4, all causes of action for injuries or conditions related to the sexual abuse of a minor, as defined in section 4C, that would have been barred by virtue of the expiration of a civil statute of limitations, notice of claim or presentation deadline, or any other time limit that expired, or for which a final judgement was rendered based on the expiration of any time limitation prior to the effective date of this section is hereby revived and may be commenced within two years from the effective date of this Act. This section applies to both individual and institutional defendants, whether public, private, or charitable and is intended to govern all civil causes of action related to child sexual abuse, including but not limited to claims involving ordinary negligence, vicarious liability, and/or respondeat superior. This section is intended to be retroactive to the fullest extent of the law, including revival of previously expired causes of actions.

SECTION 4. Section 5B of said chapter 260 is hereby amended by inserting the following after the word “accrues”:

; provided, however, that an action commenced under 20 U.S.C. §§1681-1688 related to child sexual abuse, as defined in section 4C, shall be governed by the provisions of section 4C½.

SECTION 5. Section 85K of chapter 231 of the General Laws is hereby amended by inserting, in line 12, after the word “costs” the following language:

35 ;provided, however, that claims related to child sexual abuse, as defined in section 4C of
36 chapter 260, including any action revived under Section 4 shall not be subject to a limitation on
37 damages.

38 SECTION 6. Section 85W of said chapter 231 is hereby amended by inserting, in line 11,
39 after the word “person” the following language:

40 ; provided further, however, that the immunity conferred in this section shall not apply to
41 claims related to child sexual abuse, as defined in section 4C of chapter 260, including any action
42 revived under Section 4.

43 SECTION 7. Section 85V of said chapter 231 is hereby amended by inserting after clause
44 (iii) the following clause:

45 (iv) claims related to child sexual abuse, as defined in section 4C of chapter 260,
46 including any action revived under Section 4.

47 SECTION 8. Section 2 of chapter 258 of the General Laws is hereby amended by
48 inserting, in line 12, after the word “damages” the following language:

49 ;provided further, however, that all claims related to child sexual abuse, as defined in
50 section 4C of chapter 260, including any action revived under Section 4 shall not be subject to a
51 limitation on damages.

52 SECTION 9. Subsection (j) of section 10 of said chapter 258 is hereby amended by
53 inserting after subpart (4) the following subpart:

54 (5) any claim by or on behalf of a person who alleges that they were sexually abused as a
55 child as defined in section 4C of chapter 260, including any action revived under Section 4.

SECTION 10. This act shall take effect immediately upon passage.